

2017 WL 157203 (N.Y.Sup.) (Trial Pleading)
Supreme Court of New York.
Bronx County

John DIAZ and Juan Berrios, Plaintiff,

v.

CITY OF NEW YORK, New York City Police Department, Detective **Abdiel Anderson**, Shield
1429 of the Narchbx Command and New York City Police Officers John Doe, Defendants.

No. 20120/2017E.
January 6, 2017.

Summons

Jason A. Steinbergen, Esq., Law Offices of Jason A. Steinberger, LLC, 505 Eighth Avenue, Suite 701, New York, NY 10018, (646) 256-1007, for plaintiffs.

TO THE ABOVE NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED to Answer the Verified Complaint in this action and serve a copy of your answer, or if the Verified Complaint is not served with this Summons to serve a notice of Appearance on the Plaintiffs attorney within twenty (20) days after the service of this Summons, exclusive of the day of service (or within thirty (30) days after the service is complete if this Summons is not personally delivered to you within the State of New York) and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the Verified Complaint.

The basis of venue designated is that the incident occurred in Bronx County.

Dated: January 5, 2017

Bronx, NY

Yours, etc.,

LAW OFFICES OF JASON A. STEINBERGER, LLC

Attorney for Plaintiff

505 Eighth Avenue

Suite 701

New York, NY 10018

(646) 256-1007

Plaintiff, by and through his attorney, JASON A. STEINBERGER, Esq, for his complaint, alleges upon information and belief as follows:

STATEMENT OF FACTS

1. That at all times hereinafter mentioned, Plaintiff John Diaz, (hereinafter referred to as “DIAZ”) resides in Queens County, State of New York.
2. That at all times hereinafter mentioned, Plaintiff Juan Berrios, (hereinafter referred to as “BERRIOS”) resides in Bronx County, State of New York.
3. That at all times hereinafter mentioned Defendant, Detective **Abdiel Anderson**, Shield 1429 of the NARCB BX Command (hereinafter referred to as “ANDERSON”) was employed by the New York City Police Department.
4. That at all times hereinafter mentioned Defendant, New York City Police Officers John Doe, those officers involved in the arrest of DIAZ and BERRIOS, (hereinafter referred to as “DOES”) were employed by the New York City Police Department.
5. That at all times hereinafter mentioned, Defendant City of New York, is a municipal corporation organized and existing under the laws of the State of New York, with a principal place of business located at 1 Centre Street, County of New York State of New York.
6. That at all times hereinafter mentioned, Defendant New York City Police Department, is an agency created and maintained by the above municipal government.
7. On or about December 29, 2015 notice required by Municipal Law 50-E was given to City of New York, by personal service for Plaintiff DIAZ. Said notice set forth the facts underlying Plaintiffs' claim against the City of New York, and its agents and employees. To date, no answer has been received by Plaintiff and no compensation has been offered by the City of New York.
8. On or about December 29, 2015 notice required by Municipal Law 50-E was given to City of New York, by personal service for Plaintiff BERRIOS. Said notice set forth the facts underlying Plaintiffs' claim against the City of New York, and its agents and employees. To date, no answer has been received by Plaintiff and no compensation has been offered by the City of New York.
9. On or about June 17, 2016 a hearing required by Municipal Law 50-H was conducted as to Plaintiff DIAZ. At said hearing, Plaintiffs testified and set forth the facts underlying her claim against the City of New York and its agents and employees. To date, no answer has been received by Plaintiffs and no compensation has been offered by the City of New York in response to this claim, and more than thirty (30) days have elapsed.
10. On or about January 3, 2017 a hearing required by Municipal Law 50-H will be conducted as to Plaintiff BERRIOS. At said hearing, Plaintiffs will testify and set forth the facts underlying her claim against the City of New York and its agents and employees.
11. That on or about October 7, 2015 at approximately 1:00PM in the vicinity of 148 Street and Third Avenue, Bronx NY, Plaintiffs were attempting to meet up with one another at the above mentioned intersection when ANDERSON and DOES stopped, handcuffed and arrested DIAZ and BERRIOS.

12. That when BERRIOS was stopped by ANDERSON and DOES he was thrown to the ground, punched and kicked about his body, arms, wrists and hands.
13. That as a result of the actions of ANDERSON and DOES, BERRIOS experienced substantial swelling and pain, redness and bruising to his body, arms, wrists and hands.
14. That at no time prior to their arrest, did Plaintiffs engage in any unlawful or illegal activity.
15. That at no time prior to their arrest, did Plaintiffs possess anything of an unlawful or illegal nature.
16. That at no time prior to their arrest, did Plaintiffs sell or assist in the sale of anything of an unlawful or illegal nature.
17. That Plaintiffs were transported to the 40 precinct in Bronx, NY.
18. That when Plaintiffs were removed to the 40 Precinct, they was placed into a cell with several males for several hours.
19. That while Plaintiffs inside of the 40 Precinct, they were each strip searched and that nothing of an illegal or unlawful nature was found.
20. That after several hours of being held in a cell, Plaintiffs were removed to Bronx County Central Booking located at 215 East 161 Street, Bronx NY.
21. That while at Bronx County Central Booking, Plaintiffs were held in a cell with other females for several hours.
22. That on or about October 8, 2015, Plaintiffs were arraigned in Bronx County Criminal Court wherein they were charged with Criminal Possession of a Controlled Substance and related offenses.
23. That at the time of their arraignment, bail was set as to each of the Plaintiffs and they were each remanded to the custody of a New York City Correctional facility.
24. That while inside of a New York City Correctional facility, BERRIOS received medical treatment for his right wrist.
25. That while inside of a New York City Correctional facility, on or about October 10, 2015, DIAZ suffered a stroke requiring medical attention.
26. That while inside of a New York City Correctional facility, on or about October 11, 2015, DIAZ suffered a stroke requiring medical attnetion.
27. That on and or about October 13, 2015 DIAZ and BERRIOS were each released on their own recognizance after the Office of the District Attorney failed to present their cases to the Grand Jury.
28. That on and between October 13, 2015 and May 23, 2016, Plaintiff made several court appearances until the cases against Plaintiffs were dismissed upon application of the Office of the Bronx County District Attorney.

AS AND FOR A FIRST CAUSE OF ACTION AGAINST DEFENDANTS

29. DIAZ repeats, reiterates and realleges the allegations contained in paragraphs 1 through
- 28, as if more fully stated herein at length.

30. That Defendants acted with actual malice toward DIAZ and with willful and wanton indifference to and deliberate disregard for the statutory and constitutional rights of the Plaintiff.

31. That the actions of the Defendants constituted unreasonable deprivation of liberty without due process of law.

32. That as a result of the actions of Defendants, DIAZ was seriously injured due to the intentional manner in which Defendants, their agents, servants, employees and/or licensees treated DIAZ and he was wounded, suffered, still suffers, and will continue to suffer for some time great physical pain and great bodily injuries and became sick, sore, lame and disabled and so remained for a considerable length of time.

33. That as a result of the actions by Defendants, DIAZ was traumatized and fears for his physical safety when he sees and encounters members of the New York City Police Department from that day and onward.

34. That as a result of the Defendants' actions, DIAZ has been unable to sleep.

35. That as a result of the Defendants' actions, DIAZ was forced to miss multiple days of work.

36. That as a result of the Defendants' actions DIAZ sustained damage to his person in the sum within the jurisdiction of the Supreme Court and in excess of all inferior courts.

AS AND FOR A SECOND CAUSE OF ACTION AGAINST DEFENDANTS

37. DIAZ repeats, reiterates and realleges the allegations contained in paragraphs 1 through

36, as if more fully stated herein at length.

38. The intentional verbal abuse, false arrest, false imprisonment and malicious prosecution by Defendants violated the rights of the DIAZ as guaranteed by the Fourth, Fifth and Eighth Amendments to the United States Constitution, as well as the corresponding sections of the New York State Constitution, for which Defendants are individually liable.

39. Defendants having no lawful authority to arrest DIAZ, did, nevertheless, unlawfully arrest DIAZ with actual malice toward him and with willful and wanton indifference to and deliberate disregard for his constitutional rights. Thus DIAZ is entitled to both compensatory and exemplary damages.

AS AND FOR A THIRD CAUSE OF ACTION AS AGAINST DEFENDANTS

40. DIAZ repeats, reiterates and realleges the allegations contained in paragraphs 1 through 39, as if more fully stated herein at length.

41. Defendants conspired to violate DIAZ's statutory civil rights in violation of [42 U.S.C. sec. 1983](#), et al as well as the corresponding sections of the New York State Constitution, for which Defendants are individually liable. Thus DIAZ is entitled to both compensatory and exemplary damages, as well as attorney's fees.

AS AND FOR A FOURTH CAUSE OF ACTION AS AGAINST DEFENDANTS

42. DIAZ repeats, reiterates and realleges the allegations contained in paragraphs 1 through

41, as if more fully stated herein at length.

43. DIAZ was verbally abused, falsely arrested, falsely imprisoned and maliciously prosecuted by Defendants in a manner that was extreme, outrageous and unjustified and caused DIAZ to suffer physical and severe emotional distress for which the Defendants are individually liable. The verbal abuse, false arrest and false imprisonment on and of Plaintiff by Defendants were unjustified and done with actual malice and wanton indifference to and deliberate disregard for human life and the rights of DIAZ. DIAZ is thus entitled to compensatory and exemplary damages.

44. That during the pendency of the case, Defendants maliciously prosecuted DIAZ by continuing to cooperate in a prosecution when Plaintiff should never have been arrested. DIAZ is thus entitled to compensatory and exemplary damages.

**AS AND FOR A FIFTH CAUSE OF ACTION AS AGAINST CITY
OF NEW YORK AND NEW YORK CITY POLICE DEPARTMENT**

45. DIAZ repeats, reiterates and realleges the allegations contained in paragraphs 1 through 44, as if more fully stated herein at length.

46. At all times pertinent hereto, ANDERSON and DOES were acting within the scope of their employment as an officer of the New York City Police Department and City of New York.

47. The City of New York and New York City Police Department are each liable for compensatory damages under the doctrine of respondeat superior for the intentional torts that ANDERSON and DOES committed within the scope of his employment.

**AS AND FOR A SIXTH CAUSE OF ACTION AS AGAINST CITY
OF NEW YORK AND NEW YORK CITY POLICE DEPARTMENT**

48. DIAZ repeats, reiterates and realleges the allegations contained in paragraphs 1 through

47, as if more fully stated herein at length.

49. The City of New York and New York City Police Department's failure to provide adequate training and supervision to its police officers constitutes a willful and wanton indifference and deliberate disregard for human life and the rights of private citizens, including Plaintiff. Plaintiff is thus entitled to compensatory exemplary damages.

AS AND FOR A SEVENTH CAUSE OF ACTION AS AGAINST DEFENDANTS

50. DIAZ repeats, reiterates and realleges the allegations contained in paragraphs 1 through

49, as if more fully stated herein at length.

51. Upon information and belief, the City of New York and New York City Police Department maintained a system of review of police conduct which was so untimely and cursory that it was ineffective and permitted and tolerated the unreasonable detention of DIAZ.

52. Upon information and belief, the City of New York and New York City Police Department maintained a system of review of police conduct which was so untimely and cursory that it was ineffective and permitted the wanton indifference to and deliberate disregard for the statutory and constitutional rights of DIAZ.

AS AND FOR AN EIGHTH CAUSE OF ACTION AS AGAINST DEFENDANTS

53. BERRIOS repeats, reiterates and realleges the allegations contained in paragraphs 1 through 52, as if more fully stated herein at length.

54. That Defendants acted with actual malice toward BERRIOS and with willful and wanton indifference to and deliberate disregard for the statutory and constitutional rights of the Plaintiff.

55. That the actions of the Defendants constituted unreasonable deprivation of liberty without due process of law.

56. That as a result of the actions of Defendants, BERRIOS was seriously injured due to the intentional manner in which Defendants, their agents, servants, employees and/or licensees treated BERRIOS and he was wounded, suffered, still suffers, and will continue to suffer for some time great physical pain and great bodily injuries and became sick, sore, lame and disabled and so remained for a considerable length of time.

57. That as a result of the actions by Defendants, BERRIOS was traumatized and fears for his physical safety when he sees and encounters members of the New York City Police Department from that day and onward.

58. That as a result of the Defendants' actions, BERRIOS has been unable to sleep.

59. That as a result of the Defendants' actions, BERRIOS was forced to miss multiple days of work.

60. That as a result of the Defendants' actions BERRIOS sustained damage to his person in the sum within the jurisdiction of the Supreme Court and in excess of all inferior courts.

AS AND FOR A NINTH CAUSE OF ACTION AGAINST DEFENDANTS

61. BERRIOS repeats, reiterates and realleges the allegations contained in paragraphs 1 through 60, as if more fully stated herein at length.

62. The intentional verbal abuse, false arrest, false imprisonment and malicious prosecution by Defendants violated the rights of the BERRIOS as guaranteed by the Fourth, Fifth and Eighth Amendments to the Unites States Constitution, as well as the corresponding sections of the New York State Constitution, for which Defendants are individually liable.

63. Defendants having no lawful authority to arrest BERRIOS, did, nevertheless, unlawfully arrest BERRIOS with actual malice toward him and with willful and wanton indifference to and deliberate disregard for his constitutional rights. Thus BERRIOS is entitled to both compensatory and exemplary damages.

AS AND FOR A TENTH CAUSE OF ACTION AS AGAINST DEFENDANTS

64. BERRIOS repeats, reiterates and realleges the allegations contained in paragraphs 1 through 53, as if more fully stated herein at length.

65. Defendants conspired to violate BERRIOS's statutory civil rights in violation of 42 U.S.C. sec.1983, et al as well as the corresponding sections of the New York State Constitution, for which Defendants are individually liable. Thus BERRIOS is entitled to both compensatory and exemplary damages, as well as attorney's fees.

AS AND FOR AN ELEVENTH CAUSE OF ACTION AS AGAINST DEFENDANTS

66. BERRIOS repeats, reiterates and realleges the allegations contained in paragraphs 1 through 65, as if more fully stated herein at length.

67. BERRIOS was verbally abused, falsely arrested, falsely imprisoned and maliciously prosecuted by Defendants in a manner that was extreme, outrageous and unjustified and caused BERRIOS to suffer physical and severe emotional distress for which the Defendants are individually liable. The verbal abuse, false arrest and false imprisonment on and of Plaintiff by Defendants were unjustified and done with actual malice and wanton indifference to and deliberate disregard for human life and the rights of BERRIOS. BERRIOS is thus entitled to compensatory and exemplary damages.

68. That during the pendency of the case, Defendants maliciously prosecuted BERRIOS by continuing to cooperate in a prosecution when Plaintiff should never have been arrested. BERRIOS is thus entitled to compensatory and exemplary damages.

**AS AND FOR A TWELFTH CAUSE OF ACTION AS AGAINST CITY
OF NEW YORK AND NEW YORK CITY POLICE DEPARTMENT**

69. BERRIOS repeats, reiterates and realleges the allegations contained in paragraphs 1 through 68, as if more fully stated herein at length.

70. At all times pertinent hereto, BERRIOS and DOES were acting within the scope of their employment as an officer of the New York City Police Department and City of New York.

71. The City of New York and New York City Police Department are each liable for compensatory damages under the doctrine of respondeat superior for the intentional torts that BERRIOS and DOES committed within the scope of his employment.

**AS AND FOR A THIRTEENTH CAUSE OF ACTION AS AGAINST
CITY OF NEW YORK AND NEW YORK CITY POLICE DEPARTMENT**

72. BERRIOS repeats, reiterates and realleges the allegations contained in paragraphs 1 through 71, as if more fully stated herein at length.

73. The City of New York and New York City Police Department's failure to provide adequate training and supervision to its police officers constitutes a willful and wanton indifference and deliberate disregard for human life and the rights of private citizens, including Plaintiff. Plaintiff is thus entitled to compensatory exemplary damages.

AS AND FOR A FOURTEENTH CAUSE OF ACTION AS AGAINST DEFENDANTS

74. BERRIOS repeats, reiterates and realleges the allegations contained in paragraphs 1 through 73, as if more fully stated herein at length.

75. Upon information and belief, the City of New York and New York City Police Department maintained a system of review of police conduct which was so untimely and cursory that it was ineffective and permitted and tolerated the unreasonable detention of BERRIOS.

76. Upon information and belief, the City of New York and New York City Police Department maintained a system of review of police conduct which was so untimely and cursory that it was ineffective and permitted the wanton indifference to and deliberate disregard for the statutory and constitutional rights of BERRIOS.

WHEREFORE, Plaintiffs each demand judgment against the Defendants as follows:

On the first cause of action, a sum within the jurisdiction of this Court and in excess of all inferior courts;

On the second cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts, together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts owing to the willful and wanton nature of Defendants actions.

On the third cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts owing to the willful and wanton nature of Defendants actions.

On the fourth cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts owing to the Defendants' wanton and willful actions;

On the fifth cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts

On the sixth cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts.

On the seventh cause of action, a sum within the jurisdiction of this Court and in excess of all inferior courts.

On the eighth cause of action, a sum within the jurisdiction of this Court and in excess of all inferior courts;

On the ninth cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts, together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts owing to the willful and wanton nature of Defendants actions.

On the tenth cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts owing to the willful and wanton nature of Defendants actions.

On the eleventh cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts owing to the Defendants' wanton and willful actions;

On the twelfth cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts

On the thirteenth cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts.

On the fourteenth cause of action, a sum within the jurisdiction of this Court and in excess of all inferior courts.

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